

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
DASHAWN BOONE,

Plaintiff,

- against -

INDEX NO.
Plaintiff(s) designate
NEW YORK County
as the place of trial.
The basis of venue
is situs of accident.

**SUMMONS WITH
NOTICE**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. CRAIG SIKORSKI,
(SHIELD NO. 962) AND JOHN DOES 1 - 3,

Plaintiff resides at
50 Fort Greene Place
Apt. BD
Brooklyn, NY 11207

Defendants.

=====X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
JUNE 13, 2016



By: Steven Seener, Esq.
SEENER & SEENER
Attorneys for the Plaintiff(s)
Office & P.O. Address
11 PARK PLACE
Suite 914
New York, New York 10007
(212) 766-2050

Defendant(s) address:

1. THE CITY OF NEW YORK: 100 Church Street, New York, NY 10007.
2. NEW YORK CITY POLICE DEPT. c/o Corp. Counsel, 100 Church Street, NY, NY 10007

3. P.O. CRAIG SIKORSKI (SHIELD NO. 962) c/o Corp. Counsel, 100 Church Street,
NY, NY 10007 AND 6th PCT, NY, NY

Notice: The nature of this action is VIOLATION OF CIVIL RIGHTS, 42 USC 1983
ACTION; FALSE ARREST; IMPRISONMENT; TORT; NEGLIGENCE.

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount
to be determined by a jury or trier of fact at the time of trial and in an amount which
exceeds the jurisdictional limitations of all the lower courts which would otherwise have
jurisdiction, together with interest from 3/22/15, and the costs of this action.

INDEX NUMBER PURCHASED AND SUMMONS AND COMPLAINT FILED:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

INDEX NO.

=====X
DASHAWN BOONE,

Plaintiff,

- against -

COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. CRAIG SIKORSKI,
(SHIELD NO. 962) AND JOHN DOES 1 - 3,

Defendants.

=====X

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, the plaintiff is currently a resident of the County of Kings, City and State of New York.

2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly formed and existing by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a department of the defendant, THE CITY OF NEW YORK, and was duly formed and existing by virtue of the laws of the State of New York.

4. That the plaintiff has complied with all of the conditions precedent to the bringing of this action and more particularly, that a Notice of Claim was served on the

defendant, THE CITY OF NEW YORK on April 10, 2015 within 90 days of the incident and arrest of the plaintiff; a statutory, 50-H hearing has been held; and that more than 30 days has elapsed to date from the service of the notice of claim and the plaintiff's claims remain unresolved.

5. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and violation of plaintiff's rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, of the laws of the State of New York and the New York State Constitution.

6. The arrest and of the plaintiff was unlawful, and unjust; and the arrest, search, detainment and prosecution of the plaintiff constituted a deprivation of the plaintiff's constitutional rights; the initial occurrence took place on 3/22/15 at approximately 1:00 a.m. commencing at 13th Street between 9th and 10th Avenues, in the County of New York, City and State of New York and further the plaintiff appeared in Criminal Court New York County on a number of occasions; the defendants, City of New York, New York City Police Department, and P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 and arrested the plaintiff without probable cause and unlawfully detained him; the plaintiff's rights were violated, in violation of the Fourth and Fourteenth Amendments to the United States Constitution; Plaintiff was deprived of his constitutional and common law rights and rights under the United States Constitution and New York State Constitution when defendant, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 unlawfully arrested, stopped, searched, and confined plaintiff, and caused an

unjustifiable and illegal arrest of the plaintiff.

7. Plaintiff was falsely arrested and/or arrested without probable cause, without reasonable cause, without legal process and without legal justification; the plaintiff, DASHAWN BOONE, was temporarily in custody and/or detained in custody of the defendant, Police Dept. and/or defendant, New York City Police Dept., against his will; he was held by defendant, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 of the New York City Police Dept.

8. That plaintiff, DASHAWN BOONE, was caused to suffer serious, severe injuries, mental anguish, and special damages.

9. That plaintiff, DASHAWN BOONE, was arrested and held against his will for no legal reason; he was arrested and charged falsely with a crime.

10. Moreover, Defendant, P.O. CRAIG SIKORSKI and/or JOHN DOES 1 - 3, were verbally abusive to the plaintiff.

11. The detainment of the plaintiff, DASHAWN BOONE, was baseless and illegal.

12. Defendant, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 were and still are at all times relevant herein officers, police officers, employees, and/or agents of the defendants, New York City Police Department and/or the City of New York and residents of the State of New York.

13. On the date of incident, 3/22/15, defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3, were employees of the defendants, New York City Police Department and/or City of New York.

14. At all times relevant herein, Defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3, were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officer of the New York City Police Department and other defendants, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties; defendant, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 were acting for and on behalf of the defendants, New York City Police Department and/or City of New York, at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and other defendants and incidental to the lawful pursuit of his duties as an officer, employee and agent of the New York City Police Department and/or City of New York.

15. Defendant, City of New York, is a municipal entity created and authorized under the laws of the State of New York; it is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible; the defendant, City of New York, assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. That on the above stated date and time P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 accosted, stopped, and interrogated plaintiff without probable cause.

17. The defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 arrested and detained the plaintiff without probable cause or legal justification.

18. Other police officers observed defendants, P.O. CRAIG SIKORSKI and/or JOHN DOES 1 - 3, violate plaintiff's rights under the Constitution of the United States and the NYS Constitution, and did nothing to prevent the violation of his Constitutional Rights or stop the arrest and other illegal and improper actions by defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3.

19. Failure to intervene by the defendants by their police officers caused plaintiff to sustain mental anguish and emotional trauma.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and

Fourteenth Amendment Rights

20. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 19 with the same force and effect as if more fully set forth at length herein.

21. Defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3, were acting within the scope of their authority, arrested and caused plaintiff to be injured, imprisoned and then violated plaintiff's right to be free from unreasonable search and seizure and injury punishment under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

22. Plaintiff suffered mental anguish and emotional injuries as a result of his incarceration and arrest.

23. As a result of plaintiff's unlawful seizure and illegal arrest amounting to a

violation of his civil rights, plaintiff suffered degradation, humiliation, loss of reputation and esteem and various other emotional injuries, as well as economic harm.

THIRD CAUSE OF ACTION

24. Plaintiff reiterates and realleges the facts stated in paragraphs 1-25 as if stated fully herein.

25. As a result of the actions of Defendants, acting under “Color of law,” plaintiff was deprived of his rights to freedom and was deprived of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983 and NYS Constitution.

26. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with reckless disregard.

27. As a direct and proximate result of the acts of Defendants, plaintiff suffered mental anguish, psychological and economic injuries, endured great pain and mental suffering, was deprived of his liberty.

FOURTH CAUSE OF ACTION

28. Plaintiff reiterates and realleges the facts stated in paragraphs 1-27 as if stated fully herein.

29. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his right to freedom from excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

30. Defendants subjected Plaintiff to these deprivations of his rights either

maliciously or by acting with a reckless disregard of Plaintiff's rights.

31. Other officers present tacitly participated in the excessive force or were present and improperly failed to intervene to prevent defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3, from using excessive force although they were in a position to do so.

32. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid; all Defendants are liable for said damages and injuries.

FIFTH CAUSE OF ACTION

For Violation of Civil Rights

33. Plaintiff reiterates and realleges the facts stated in paragraphs 1-32 as if stated fully herein.

34. Defendant, City of New York, and Defendant New York City Police Department, through its police Commissioner as a municipal policymakers, in the hiring, training and supervision of the Defendants, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and Plaintiff, violating Plaintiff's rights to freedom from the use of excessive and unreasonable force and freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983 and 42 U.S.C. 1985.

35. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants, New York City and New York City Police Department, Defendants committed the unlawful acts referred to above and thus,

Defendants New York City and New York City Police Department are liable for the Plaintiff's injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in the presence of other officers.

38. Defendants failed to intervene to prevent the unlawful conduct described herein.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The defendants, City of New York and defendant New York City Police Department and their employees, servants and/or agents acting within the scope of their employment, did negligently hire, retain, train and supervise defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3, who were unfit for the performance of police duties on 3/22/15, at the aforementioned location.

EIGHTH CAUSE OF ACTION

INTENTIONAL TORT

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The defendants, P.O. CRAIG SIKORSKI and JOHN DOES 1 - 3 and the other defendants are guilty of and liable to the plaintiff for their actions for intentional tort and thereby caused damages to the plaintiff.

43. The actions of the defendants were guilty and liable for Police brutality for falsely stopping, harassing and arresting the plaintiff.

NINTH CAUSE OF ACTION

NEGLIGENCE

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The defendants were negligent in regard to the manner or arrest and subsequent handling and processing of the plaintiff.

46. The said accident and the injuries resulting therefrom were caused solely by reason of the negligence, carelessness and recklessness on the part of the defendants herein, their agents, servants and/or employees and without any negligence on the part of the plaintiff contributing thereto.

47. That the defendants, their agents, servants and/or employees had actual

manner of handling the plaintiff; further, the defendants, their agents, servants and/or employees failed to act to correct said defective, hazardous, insufficient and deficient manner of arrest and subsequent manner of handling the plaintiff prior to the happening of this accident or incident.

48. That upon information and belief the defendants, their agents, servants and/or employees caused and created deficient and insufficient methods of arresting and handling persons so arrested and police procedures or ignored the dangerous conditions so created and failed to follow security procedures, police procedures and policing systems that they had established; as a result of the defendants' negligence plaintiff suffered injuries.

49. That, by reason of the foregoing, the plaintiff, was damaged and sustained injuries.

50. That as a result, plaintiff lost employment and he was unable to attend to his usual duties, with resultant loss of earnings and/or loss of ability to perform his normal functions and duties.

51. That by reason of the aforesaid, plaintiff, suffered injuries and suffered severe mental anguish and shock to his body mind, nerves and central nervous system, and was rendered sick, sore, lame and disabled; that these injuries may be of a permanent character.

52. That as a result of the foregoing, plaintiff has been damaged in a sum to be determined at trial by the court or trier of fact at trial.

53. That this action falls within one or more of the exceptions set forth in the

C.P.L.R. Sec. 1602.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in a substantial sum of money which exceeds the jurisdictional limits of all the lower courts that would otherwise have jurisdiction, and which amount will be determined by a jury or trier of fact against the defendants at the time of trial; together with the interest, costs and disbursements herein;

- a. Further, that the plaintiff recover the costs of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.
- b. That the plaintiff has such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
June 13, 2016

By:



STEVEN SEENER, ESQ.
SEENER & SEENER, ESQS.
Attorneys for Plaintiff
DASHAWN BOONE
11 Park Place - Suite 914
New York, New York 10007
Telephone No. 212-766-2050

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the courts of the State of New York, shows that affirmant is a partner in the firm of SEENER AND SEENER, attorneys of record for the Plaintiff(s) in the within action, that affirmant has read the foregoing **complaint** and knows the contents thereof; that the same is true to the affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true.

Affirmant further says that the reason this verification is made by affirmant and not by said Plaintiff(s) is that Plaintiff(s) are not residents of the County in which affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Document's in affirmant's file.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 13, 2016



STEVEN SEENER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DASHAWN BOONE,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. CRAIG SIKORSKI,
(SHIELD NO. 962) AND JOHN DOES 1 - 3,

Defendants.

=====X

SUMMONS AND COMPLAINT



SEENER & SEENER, ESQS.
BY: STEVEN SEENER, ESQ.
ATTORNEYS FOR PLAINTIFF
11 Park Place - Suite 914
New York, New York 10007
(212) 766-2050

CERTIFICATION

The foregoing DOCUMENTS, PLEADINGS & PAPERS ARE hereby certified pursuant
to 22 N.Y.C.R.R. 1301.1

Dated: New York, New York
June 13, 2016



STEVEN SEENER, ESQ.